



File No.: EXP202205736

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by Mr. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated April 10, 2023, and based on the following

FACTS

FIRST: On April 10, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202205736, by virtue of which Mr. A.A.A. with NIF ***NIF.1, was imposed a fine of 300 euros (THREE HUNDRED euros) for an infringement of Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR.

This resolution, which was notified to the appellant on April 13, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (LOPDGDD), and subsidiarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00493/2022, the following was recorded:

FIRST: The complainant states that the respondent is responsible for a rural plot where two cameras have been installed in its exterior area, facing a public access path, without prior administrative authorization for this, having informative signs of a video surveillance area that only indicate the name of a security company, with no further information.

Images of the location of the cameras are provided.

SECOND: The Spanish Agency for Data Protection has notified the respondent of the Agreement to Initiate this Sanctioning Procedure, without the respondent having submitted allegations or evidence contradicting the reported facts.

THIRD: The appellant submitted on May 15, 2023, to this Spanish Agency for Data Protection, a reconsideration appeal, basing it fundamentally on the following:

"It is not appropriate to impose any sanction, since both the properties where the cameras are located and the cameras themselves are owned by the company MOURENTAN ALMUIÑA INVERSIONES, S.L. with CIF B86697026.

In virtue of the above, the appearing party is not passively legitimized to bear the imposed sanction.

Nor would it be legitimized to remove the cameras, since they are not their property.

Secondly, and even if only for controversial purposes, the reported cameras are not active, so they do not infringe the complainant's privacy in any case.

Notwithstanding the above, it is important to highlight that the cameras, even when not in use, would focus from a property of the company Mourentan Almuiña to another plot owned by Mourentan Almuiña, both plots bordering each other, without any public path running through.

There is a right of way, a private easement, over both properties, but not a public path, which is why Mourentan Almuiña S.L. would be legitimized to operate cameras on both plots, as long as they do not focus on foreign or public property."

FOURTH: On June 14, 2023, this Agency requested the appellant to provide documentary evidence that the owner of the rural plot where the cameras are located belongs to the entity indicated in their Reconsideration Appeal.

This request was notified on June 15, and no response has been received after the granted deadline.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in

accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

Regarding the statements made by the appellant, when they allege “that both the properties where the cameras are located and the cameras themselves are owned by the company MOURENTAN ALMUIÑA INVERSIONES, S.L. with CIF B86697026,” these assertions are not documented, neither in the appeal nor in response to the subsequent request made to them.

On the other hand, if, as the appellant indicates, they are not responsible for the cameras, it is surprising that they categorically state that they belong to the company, that they are not operational, and that they focus on an easement of passage.

Furthermore, Article 118.1 of the LPACAP, in the second paragraph, states:

“Facts, documents, or evidence that are not presented in the resolution of the appeals will not be taken into account.”

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allegations of the appellant, when having been able to provide them during the allegation process, has not done so.”

III

Conclusion

Consequently, in the present appeal for reconsideration, the appellant has not documented the assertions contained in their allegations regarding who would be responsible for the cameras, and it should be added that they did not present allegations against the initiation agreement of the sanctioning procedure, which does not allow for reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the appeal for reconsideration filed by Mr. A.A.A. against the resolution of this Spanish Agency for Data Protection issued on April 10, 2023, in file EXP202205736.

SECOND: TO NOTIFY this resolution to Mr. A.A.A.

THIRD: To warn the sanctioned party that the imposed sanction must be enforced once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it in the restricted account no. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. Upon receiving the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties

may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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